

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 11, 2015

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. in Council Chambers for the purpose of collective labor bargaining with Cheyenne Professional Fire Fighters, International Association of Fire Fighters (I.A.F.F.), Local No. 279. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Mr. Cook (arriving at 6:07 p.m.), Mr. Johnson, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Ms. Williams. Absent: Mr. Valdez. Also present were: Carol Intlekofer, City Clerk; Dan White, City Attorney, and Lois Huff, City Treasurer. The pledge of allegiance was recited. Mayor Kaysen explained procedures, including audio recording of the meeting, involving a quorum of the governing body relative to special meetings.

Upon request by Mayor Kaysen, Dan White, City Attorney, presented and reviewed the City's proposed Ground Rules, titled Ground Rules for the 2015-2016 Collective Labor Agreement, and advised the governing body's spokespersons during the negotiation process would be himself and Lois Huff, City Treasurer. Mayor Kaysen requested Local No. 279 present its proposed Ground Rules. Jonathon Bertsch, President, I.A.F.F. Local No. 279, presented and discussed three concepts or concerns by Local No. 279, and indicated he would like to address the issues prior to talking about Ground Rules. [City Clerk note: Mr. Cook joined the meeting in progress] Comments followed from Mr. White and Mr. Bertsch. Mr. Bertsch submitted copies of a memo containing the concepts he discussed.

Mr. White recommended the governing body move into executive session to review and formulate a response to the Union's concepts related to the City's proposed Ground Rules. Mr. Cook moved that the governing body meet in executive session, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body present. Mayor Kaysen advised the governing body would meet in a conference room and that a meeting room was available for the Union team to use if desired. Mayor Kaysen asked Mr. White to identify City staff requested to be present at the executive session in addition to the governing body, and requested the audio recording of the meeting be stopped until the meeting was reconvened. [City Clerk note: Executive session convened at 6:23 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Kaysen reconvened the special meeting at 7:09 p.m. Mr. White reported the governing body's position on the Ground Rules was to uphold the rules as presented by the City with a modification to Section 8, which he then reviewed. He confirmed the governing body's spokespersons would be himself and Ms. Huff. David Evans, attorney for I.A.F.F. Local No. 279, expressed his opinion on proposed Ground Rules relative to direct dialogue with vs. spokespersons for the governing body, and negotiation meeting room environment. Mr. Evans stated the Union's spokespersons would be Jonathan Bertsch, President, Local No. 279, and Kevin Reddy. Copies of the Union's proposed Ground Rules, titled Ground

Rules for Negotiations 2015-2017 Collective Labor Agreement between the City of Cheyenne and I.A.F.F. Local No. 279, were distributed.

Mayor Kaysen acknowledged there were no Ground Rules in place at this time. Mr. Brown moved that the governing body meet in executive session, seconded by Ms. Williams. Motion carried. Voting “yes” -- all members of the governing body present. Mayor Kaysen asked Mr. White to identify City staff requested to be present at the executive session in addition to the governing body. [City Clerk note: Audio recording of the meeting was stopped; Executive session convened in the Mayor’s Conference Room at 7:26 p.m.]

Following closure of the executive session, Mayor Kaysen reconvened the special meeting at 8:03 p.m. Mr. White explained the position of the governing body is to negotiate in good faith through designated spokespersons, and reviewed proposed changes to the City’s Ground Rules involving incorporation of certain sections of the Union’s proposed Ground Rules.

Mr. Evans queried whether the negotiation meetings could be held in a work session environment instead of an official special meeting with Mr. White responding with information contained in the Public Meetings Act. Mr. Evans and Mr. White each presented their position on spokespersons for the governing body and the Union; interpretation of “corporate authority”, and contract approval. Mayor Kaysen reviewed governing body procedures that are followed in approving a final contract, and advised audio recording availability for meeting rooms was needed.

Mayor Kaysen recessed the special meeting at 8:20 p.m. to allow Union representatives and its attorney to confer on the Ground Rules. [City Clerk note: Audio recording of the meeting was stopped] Mayor Kaysen reconvened the special meeting at 8:35 p.m. Mr. Evans offered that the Union will merge the City and I.A.F.F. proposed Ground Rules into one “set” and submit to Mr. White on Friday (February 13, 2015) and suggested review of the combined Ground Rules continue at a special meeting on Saturday (February 14, 2015). Mr. Evans further suggested each party exchange contract proposals at the current meeting with negotiations to follow approval (assuming agreement can be reached) of the Ground Rules. Mr. Roybal moved to meet in executive session, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; Executive session convened in the City Council administrative office at 8:45 p.m.]

Mayor Kaysen reconvened the special meeting at 8:50 p.m.; advised a quorum of the governing body can be present for a special meeting to be held on Saturday, February 14, 2015 beginning at 8:30 a.m., and that it is acceptable to exchange contract proposals at the current meeting.

Mayor Kaysen stated the purpose of the special meeting had been met, and there being no further business previously noted for the special meeting, adjourned the meeting at 8:51 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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